

23VECV00281 23VECV00281

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Tentative Ruling

Sexton v. Kenmore Appliances, Case
no. 23VECV00281

Hearing date September 10, 2026

Defendants

Electrolux & White Consolidated's Motion for Summary Judgment

The

estate of Sexton and plaintiffs R.M. and R.S. Beltz sue defendants Kenmore Appliances, Frigidaire, Electrolux Home Products, Inc., landlord Conover and others for personal injury and wrongful death. Decedent, who leased a converted garage apartment from Conover, was killed when the stove exploded. Electrolux Consumer Products, Inc. and White Consolidated Industries, Inc. ("WCI"), the remaining defendants, jointly move for summary judgment.

Plaintiffs'

opposition filed 7/20/26 advanced a causation theory that a faulty knob allowed the stove to actuate, causing the explosion. Plaintiffs requested a continuance pursuant to Code Civ. Proc. §437c(h), arguing depositions of Electrolux employees Graham, Strickland and Parker were anticipated to produce testimony regarding knowledge and failure to recall. See Decl. Hernandez, para. 28, exh. BB. The court granted the request, continued the hearing and allowed supplemental briefing. 8/5/26 Min. Order.

A

motion for summary judgement must be granted if no triable issue of material fact exists as to each cause of action. Code Civ. Proc. §437c(a), (c); Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843. To obtain summary judgment, moving party must prove each element of the cause of action. Harris v. Rudin, Richman & Appel (2002) 95 Cal.App.4th 1332, as modified Mar. 5, 2002. A defendant can do so by showing plaintiff cannot establish one or more elements of the claim or there is a complete defense to that claim. Aguilar, supra, at 853. Once moving party meets this burden, the burden shifts to responding party to show a triable issue of material fact as to that cause of action or a defense thereto. Harris, supra, at 1337.

Defendants

move for summary judgment on the negligence and strict products liability claims, as well as the derivative survival claim. Defendants argue plaintiffs have not produced evidence of causation linking the allegedly defective knob to decedent's injuries. Causation is a necessary element of negligence and strict products liability claims. See Ladd v. County of San Mateo (1996) 12 Cal.4th 913, 917; see also Soule v. GM Corp. (1994) 8 Cal.4th 548, 560. The survival cause of action can only be sustained if one or more of plaintiffs' other claims survives summary judgment. See Code Civ. Proc. §377.34.

On

2/5/21 an explosion occurred in the converted garage apartment unit owned by Conover. SSMF 1. The explosion caused injuries which lead to decedent's death. Decedent leased the premises for approximately 3 years prior to his death. SSMF 2. Decedent stated immediately prior to the explosion, he attempted to light the subject stove. SSMF 3.

The

stove was manufactured by Electrolux in 2013 for Sears under the Sears Kenmore brand. SSMF 6. Sears filed for bankruptcy in October 2018. SSMF 7. Sears was responsible for the ultimate design of the stove, sale and distribution. SSMF 8-9. WCI did not design, manufacture, or distribute the stove. SSMF 10.

The

stove was designed and certified to applicable ANSI Z21.1/CSA 1.1 standard for Household Cooking Gas Appliances. SSMF 11, 27. There were no known defects when the stove left the custody and control of Electrolux. SSMF 12. There were no known complaints or issues with the stove following its purchase and

installation in the subject property. SSMF 13-16.

Following

the explosion, Los Angeles Fire Department ("LAFD") and Southern California Gas Company ("SoCal Gas") personnel inspected the scene. SSMF 19. SoCal Gas personnel pressure-tested the gas lines and appliances and found no measurable gas leak. SSMF 20. Per the LAFD report, "[t]he circumstances leading to the explosion and what caused natural gas to fill the room are unknown." SSMF 21.

On

2/24/21 investigators retained by Conover's insurance company State Farm and investigators retained by plaintiffs pressure-tested the gas system and stove. SSMF 22. State Farm's investigator concluded the stove did "not have any gas leaks at the time of the fire/explosion." SSMF 23. In response to discovery, plaintiffs failed to produce any evidence showing a defect in the stove or establishing causation. SSMF 29.

The

undisputed facts presented by defendants were sufficient to shift the burden to plaintiffs. In response, plaintiffs were granted leave to conduct further discovery, deposing Electrolux employees Graham and Parker. Plaintiffs argue their testimony establishes a triable issue of fact as to "the [s]ubject [s]tove's defective design... [and] triable issue of fact related to their negligent failure to warn." Sup. Opp., 1:25-27.

Graham

attended the CPSC Independent/Joint Gas and Electric Range Knob Working Group Meetings on 6/27/24, 3/18/25, 4/15/25 and 6/10/25. Supp. Decl. Hernandez, exh. 3, 64:15-19, 146:15-147:6, 243:21-244:4, 245:14-247:4. Parker attended the CPSC Independent/Joint Gas and Electric Range Knob Working Group Meetings on 6/27/24, 1/14/25, 3/18/25, 1/29/26 and 3/18/26. Id. at exh. 4, 19:2-18, 63:7-64:18, 65:2-68:7, 128:2-130:19, 118:19-119:10.

Electrolux

employees Chad Strickland, Peter Silman and Steve Baas are identified as attendees at CPSC Independent/Joint Gas and Electric Range Knob Working Group Meetings. All were confirmed as having roles related to safety and compliance:

(1) Graham: Senior Safety and Compliance Engineer (see Decl. Hernandez, exh. 3, 119:17-21); (2) Parker: Senior Safety and Compliance Engineer (Id. at exh. 4, 9:11-14); (3) Strickland: Director of Product Safety and Group and

Graham's and Parker's supervisor (Id. at exh. 3, 66:3-66:15); (4) Silman: Safety and Compliance Manager (Id. at 139:13-140:3); (5) Baas: Safety and Compliance Department (Id. at 141:17-142:16).

Plaintiffs

argue the Graham and Parker depositions establish the inadvertent activation, or actuation, of gas ranges was discussed at the CPSC meetings attended by them and other Electrolux representatives. Decl. Hernandez, exh. 3, 40:11-43:7; exh. 4, 84:21-85:2, 85:7-11. Plaintiffs argue the CPSC was aware of incidents of fire and deaths due to inadvertent activation of range knobs, whether from people bumping the knobs or pets activating the range. Id. at exh. R, CPSC Meeting Log, 000002-03. This does not establish causation in the instant case.

The

LAFD, while unable to determine how the subject property filled with natural gas, did conclude the explosion originated from the kitchen area when decedent attempted to light the subject stove. SSAMF 2-3. Fire Investigator Beutz of Advanced Analysis Inc.'s report documents (1) the Subject Electrolux Gas Range – identified as “the natural gas cooktop” – was unable to be ruled out “as having been the source of the ignition” and (2) the material first ignited was “explosive gas vapors.” SSAMF 8. Plaintiffs argue these facts, coupled with the purportedly known and widespread risk of accidental actuation (see SSAMF 12-17), are sufficient to create a triable issue of fact as to causation. Plaintiffs offer the declaration of Fire Investigator Mumper to assert Electrolux was on notice of the alleged dangers. SSAMF 18, 31, 35.

The

threshold for products liability requires evidence of causation. “[T]he plaintiff bears an initial burden of making ‘a prima facie showing that the injury was proximately caused by the product’s design.’ This showing requires evidence that the plaintiff was injured while using the product in an intended or reasonably foreseeable manner and that the plaintiff’s ability to avoid injury was frustrated by the absence of a safety device, or by the nature of the product’s design.” *Perez v. VAS S.p.A.* (2010) 188 Cal.App.4th 658, 678. Plaintiffs failed to proffer any evidence, such as investigation, declarations, reports or signs of damage on the subject stove itself, to establish causation.

Plaintiffs

offer no evidence that the alleged risk of accidental actuation occurred in this case. Testimony from Electrolux employees regarding general issues

discussed at CPSC meetings three years after the subject incident establish neither causation nor knowledge by either defendant. Nothing in Parker's or Graham's testimony states CPSC attributed any alleged inadvertent knob actuation complaints to Electrolux appliances generally, let alone regarding the stove at issue.

Plaintiffs

fail to provide evidence that decedent inadvertently actuated the subject stove knob, or other evidence that the subject stove was the actual or proximate cause of the explosion. No question of material fact has been raised. It is insufficient that investigative reports regarding the incident failed to identify an alternative cause; the reports did not identify the subject stove as the cause. Speculation alone cannot create a triable issue of material fact. Plaintiffs' own expert witnesses and investigators have not stated the subject stove caused the explosion. The court granted plaintiffs leave to conduct additional discovery on these issues. Plaintiffs fail to meet their burden to show a triable issue of material fact as to causation. Thus, the motion must be GRANTED.